

BC708747 BC708747

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Case Number: BC708747 Hearing Date: June 23, 2026 Dept: 224

Li v. Garnier et al.,

TENTATIVE RULING

The motion is DENIED. The record before the Court does not reflect strict compliance with the jurisdictional prerequisites of section 664.6. Thus, the Court lacks authority to vacate the dismissal and enter judgment.

Introduction

On June 6, 2018, Plaintiff Qi Li filed the Complaint in this action.

On June 9, 2021, the Court entered a dismissal of the entire action without prejudice.

On January 12, 2026, Plaintiff filed the instant Motion to Vacate Dismissal Entered Pursuant to Code of Civil Procedure Section 664.6 and Enter Judgment Pursuant to Stipulation.

On May 15, 2026, Plaintiff filed an Amended Notice of Motion rescheduling the hearing to June 23, 2026.

No opposition or reply has been filed.

Legal Standard

"If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6.) "Section 664.6 empowers a court to enforce a settlement agreement by way of a summary procedure if certain requirements are satisfied. [citations] In order to take advantage of the statute's expedited procedure, a party must first establish the agreement at issue was set forth 'in a writing signed by the parties' (section 664.6) or was made orally before the court [citation]." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

Discussion

Retention of Jurisdiction

“‘[V]oluntary dismissal of an action or special proceeding terminates the court’s jurisdiction over the matter.’” (Mesa RHF Partners, L.P. v. City of Los Angeles (2019) 33 Cal.App.5th 913, 917 [quoting *In re Conservatorship of Martha P.* (2004) 117 Cal.App.4th 857, 967] (alteration in original).) “‘If requested by the parties,’ however, ‘the [trial] court may retain jurisdiction over the parties to enforce [a] settlement until performance in full of the terms of the settlement.’” (Id. (quoting CCP section 664.6) (emphasis in original).) “‘Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement.’” (Id. (quoting *Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37).)

“A request for the trial court to retain jurisdiction under section 664.6 ‘must conform to the same three requirements which the Legislature and the courts have deemed necessary for section 664.6 enforcement of the settlement itself: the request must be made (1) during the pendency of the case, not after the case has been dismissed in its entirety, (2) by the parties themselves, and (3) either in a writing signed by the parties or orally before the court.’” (Id. (quoting *Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 440).) “The ‘request must be express, not implied from other language, and it must be clear and unambiguous.’” (Id. (quoting *Wackeen*, supra, 97 Cal.App.4th at 440).)

Here, the moving papers do not establish that the parties ever made the requisite request that the Court retain jurisdiction. The Request for Dismissal entered June 9, 2021 dismisses the entire action of all parties and all causes of action without prejudice and contains no reference to section 664.6 or to any retention of jurisdiction by the Court. (Levine Decl., Exh. B.) Although Counsel declares that the Court “retained jurisdiction pursuant to C.C.P. § 664.6”, the dismissal attached as Exhibit B does not support that assertion, nor is there any such request in the parties’ private Settlement Agreement. (Levine Decl., ¶ 3.) There is no express, clear, and unambiguous request directed to the Court that it retain jurisdiction over the parties pursuant to CCP section 664.6. Because the record before the Court does not reflect strict compliance with the jurisdictional prerequisites of section 664.6, the Court lacks authority to vacate the dismissal and enter judgment by means of the statute’s summary procedure.

The motion is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.